



## CHAPTER xciv.

An Act to confirm certain Provisional Orders of the Local Government Board relating to the Bury and District Joint Hospital District the Henley and Wallingford and the Middlesex Districts Joint Small-pox Hospital Districts and the North-East Salop United Districts. A.D. 1915.

[29th July 1915.]

**W**HEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.  
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in  
schedule  
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 9) Act 1915. Short title.

A.D. 1915.

S C H E D U L E.

BURY AND DISTRICT JOINT HOSPITAL DISTRICT.

*Bury and  
District  
Order.*

*Provisional Order for altering a Confirming Act.*

To the Bury and District Joint Hospital Board ;—  
To the Mayor Aldermen and Burgesses of the Borough of Bury ;—  
To the Urban District Council of Radcliffe ;—  
To the Urban District Council of Ramsbottom ;—  
To the Urban District Council of Tottington ;—  
To the Urban District Council of Whitefield ;—  
To the Rural District Council of Bury ;—  
And to all others whom it may concern.

3 Edw. 7.  
c. lxxxii.

WHEREAS by virtue of the Bury and District Joint Hospital Order 1903 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 17) Act 1903 (which Order and Act are herein-after referred to respectively as "the Order of 1903" and "the Confirming Act of 1903") as adapted and modified by the Bury (Extension) Order 1911 which was duly confirmed by Parliament the Borough of Bury the Urban Districts of Radcliffe Ramsbottom Tottington and Whitefield and the Rural District of Bury constitute a United District called the Bury and District Joint Hospital District (herein-after called "the United District") of which the governing body is the Bury and District Joint Hospital Board (herein-after called "the Joint Board") ;

And whereas the Joint Board are in possession of certain hospitals for the reception of cases of infectious diseases including a hospital for the reception of cases of small-pox a hospital for the reception of cases of tuberculosis and a hospital known as the Florence Nightingale Hospital for the reception of cases of infectious diseases other than small-pox and tuberculosis ;

And whereas by Articles XIX. and XX. of the Order of 1903 provision is made with respect to the expenses incurred by the Joint Board and as to the manner in which those expenses shall be ascertained and borne by the Constituent Authorities ;

[5 & 6 GEO. 5.]      *Local Government Board's*      [Oh. xciv.]  
*Provisional Orders Confirmation (No. 9) Act, 1915.*

And whereas it is expedient that the Order of 1903 should be altered as herein-after provided: A.D. 1915.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the First day of April One thousand nine hundred and sixteen the Confirming Act of 1903 so far as it relates to the Order of 1903 shall be altered so that the following provisions shall take effect that is to say:— *Bury and District Order.*  
38 & 39 Vict.  
c. 55.

Art. I. The Confirming Act of 1903 so far as it relates to the Order of 1903 shall be altered so as to provide that in lieu of Articles XIX. and XX. of the Order of 1903 there shall be respectively substituted the following provisions that is to say:—

“ Art. XIX.—(1) Separate accounts shall be kept by the Joint Board in respect of the several hospitals provided by them. Separate accounts for each hospital.

“ (2) The expenses incurred by the Joint Board in respect of the Florence Nightingale Hospital shall be classified as structural expenses patients' expenses and establishment expenses— Classification of expenses for Florence Nightingale Hospital.

“ (a) Structural expenses shall include all expenses of and connected with the acquisition of the site of the hospital the provision thereon of the hospital with all necessary furniture appliances and fittings any permanent extension or enlargement of the hospital any alteration or repair of the drainage of the hospital and any structural repairs to the hospital but shall not include ordinary repairs painting cleaning or the renewal or keeping in order of the furniture appliances or fittings of the hospital or the supply of new furniture appliances or fittings;

“ (b) Patients' expenses shall include all the expenses incurred in and about the maintenance and care of the patients in the hospital and in and about their medical treatment (except so far as the same shall be included in the salaries of the medical officer or officers and permanent nurse or nurses) and in and about the clothing conveyance to and from the hospital burials and funerals of patients and shall also include during any day on which a patient or patients may have been in the hospital the remuneration and rations of temporary nurses but shall not include any structural expenses as herein-before defined or the cost of the repairs to the hospital or to the furniture appliances and fittings thereof or the salaries remuneration or rations of the officers or servants other than temporary nurses;

[Ch. xciv.]      *Local Government Board's*      [5 & 6 GEO. 5.]  
*Provisional Orders Confirmation (No. 9) Act, 1915.*

A.D. 1915.

—  
*Bury and  
 District  
 Order.*

“ (c) Establishment expenses shall include all the expenses  
 “ incurred by the Joint Board in relation to the hospital other  
 “ than structural expenses and patients' expenses as herein-  
 “ before defined.

“ (3) The expenses incurred by the Joint Board in respect  
 “ of any hospital used for the reception of cases of small-pox  
 “ shall be classified as structural and establishment expenses  
 “ and patients' expenses—

“ (a) Patients' expenses shall as regards such hospital  
 “ include the like expenses as are specified in paragraph (b)  
 “ of subdivision (2) of this Article as regards the Florence  
 “ Nightingale Hospital;

“ (b) Structural and establishment expenses shall include  
 “ all the expenses incurred by the Joint Board in relation  
 “ to the hospital other than patients' expenses as herein-  
 “ before defined.

Common  
 fund.

“ (4) All the expenses incurred by the Joint Board shall  
 “ be defrayed out of a common fund to which shall be paid  
 “ the sums received from the Constituent Authorities as herein-  
 “ after provided and the sums recovered by the Joint Board  
 “ from or repaid to the Joint Board by or for patients.

Expenses  
 contributable  
 on basis of  
 population.

“ (5) Each Constituent Authority shall contribute to the  
 “ common fund—

“ (i) as regards structural expenses in connexion with  
 “ the Florence Nightingale Hospital;

“ (ii) as regards structural and establishment expenses  
 “ in connexion with any hospital used for the reception of  
 “ cases of small-pox;

“ (iii) as regards all the expenses incurred by the Joint  
 “ Board in respect of any other hospital provided by them  
 “ so far as the same are not met by the payments made to  
 “ the common fund in respect of sums recovered by the  
 “ Joint Board from or repaid to the Joint Board by or for  
 “ patients in that hospital; and

“ (iv) as regards all other expenses incurred by the Joint  
 “ Board and not otherwise provided for  
 “ in the proportion which the number of inhabitants in the  
 “ Constituent District of the Constituent Authority bears to the  
 “ total number of inhabitants of the Constituent Districts.

“ (6) After payment of any amount which the Urban  
 “ District Council of Tottington or the Rural District Council  
 “ of Bury are required by subdivision (5) of this Article to  
 “ pay in respect of the expenses referred to in that subdivision

“ each of those Councils shall pay to or receive from the other A.D. 1915.  
 “ Council the proportionate sum required to adjust the actual *Bury and*  
 “ payment by each Council in pursuance of the said subdivision *District*  
 “ to the amount which each Council should contribute according  
 “ to any agreement which the said Councils are hereby em-  
 “ powered to make for determining their respective shares of  
 “ the aggregate amount of the claims upon the two Councils in  
 “ respect of the aforesaid expenses Provided that in default  
 “ of agreement the several sums which the Councils shall pay  
 “ or receive in pursuance of this subdivision shall be deter-  
 “ mined upon the basis of an allocation to each Council of so  
 “ much of the aggregate amount of the claims upon the two  
 “ Councils in respect of the said expenses as is in the pro-  
 “ portion which the number of inhabitants in the district of  
 “ the said Council bears to the total number of inhabitants of  
 “ the districts of the said Councils.

“ (7) For the purposes of subdivisions (5) and (6) of this  
 “ Article the number of inhabitants shall in each case be the  
 “ number according to the returns of the last census prior to  
 “ the issue of the precepts of the Joint Board.

“ (8) Each Constituent Authority shall contribute to the  
 “ common fund as regards the establishment expenses in con-  
 “ nexion with the Florence Nightingale Hospital in the following  
 “ proportions that is to say:—

|                                        |               |             |
|----------------------------------------|---------------|-------------|
| “ The Council of the Borough of Bury   |               | Establish-  |
| “ shall contribute - - - -             | 54 per centum | ment ex-    |
| “ The Council of the Urban District of |               | penses at   |
| “ Radcliffe - - - -                    | 20 per centum | Florence    |
| “ The Council of the Urban District of |               | Nightingale |
| “ Ramsbottom - - - -                   | 11 per centum | Hospital.   |
| “ The Council of the Urban District    |               |             |
| “ of Tottington - - - -                | 5 per centum  |             |
| “ The Council of the Urban District    |               |             |
| “ of Whitefield - - - -                | 5 per centum  |             |
| “ The Council of the Rural District    |               |             |
| “ of Bury - - - -                      | 5 per centum  |             |

“ Provided that in respect of every period of five years  
 “ commencing on the First day of April One thousand nine  
 “ hundred and twenty-two the proportions herein-before specified  
 “ may be reconsidered by the Joint Board and may in respect  
 “ of every such period of five years be varied by the Joint  
 “ Board and if so varied the proportions as varied shall be  
 “ substituted until again varied for the proportions herein-before

[Ch. xciv.]      *Local Government Board's*      [5 & 6 GEO. 5.]  
*Provisional Orders Confirmation (No. 9) Act, 1915.*

A.D. 1915.

*Bury and  
District  
Order.*

Settlement of  
questions &c.

Calculation  
and payment  
of patients'  
expenses at  
Florence  
Nightingale  
and small-pox  
hospitals.

" specified as the proportions in which the Constituent Autho-  
" rities shall contribute to the common fund as regards the  
" establishment expenses in connexion with the Florence  
" Nightingale Hospital.

" (9) If any question or difference arises between the  
" Joint Board and any of the Constituent Authorities or between  
" any of the Constituent Authorities as to what are to be  
" deemed structural expenses patients' expenses or establishment  
" expenses within the meaning of subdivision (2) or subdivi-  
" sion (3) of this Article the said question or difference may  
" on the application of the Joint Board or of any of the  
" Constituent Authorities be referred to the Local Government  
" Board for their decision and the decision of the Local Govern-  
" ment Board shall be final and conclusive.

" Art. XX. Patients' expenses in respect of the Florence  
" Nightingale Hospital and in respect of any hospital used for  
" the reception of cases of small-pox shall be ascertained and  
" paid as follows that is to say:—

" (1) Within forty-two days after the Thirty-first day of  
" March and the Thirtieth day of September in each year  
" the Joint Board shall ascertain the proportionate part of  
" the total amount of the patients' expenses incurred during  
" the previous half-year which will represent the average  
" daily cost in respect of each patient:

" (2) The clerk to the Joint Board shall within forty-  
" nine days after the Thirty-first day of March and the  
" Thirtieth day of September in each year transmit to the clerk  
" to each Constituent Authority an account showing in respect  
" of each patient received during the previous half-year into  
" the hospital from the district of that authority after  
" deducting any sums recovered by the Joint Board from or  
" repaid to the Joint Board by or for that patient—

" (a) the name and address of the patient;

" (b) the number of days in the half-year during which  
" the patient has remained in the hospital;

" (c) the amount (calculated according to the daily  
" average cost ascertained as aforesaid) claimed as being  
" due from the Constituent Authority:

" (3) The amount shown by the said account to be due  
" shall be paid by the Constituent Authority from whose  
" district the patient has been received into the hospital and  
" shall be included in any precept which the Joint Board  
" issue to the Constituent Authority under Section 284 of the  
" Act stating the sums to be contributed by the Constituent

[5 & 6 GEO. 5.]      *Local Government Board's*      [Ch. xciv.]  
*Provisional Orders Confirmation (No. 9) Act, 1915.*

" Authority towards the common fund of the district and in A.D. 1915.  
" case of default shall be recovered in like manner as the *Bury and*  
" sums to be contributed towards the said common fund." *District*  
*Order.*

Art. II. This Order may be cited as the Bury and District Joint Short titles.  
Hospital Order 1915 and the Bury and District Joint Hospital Order  
1903 and this Order may be cited together as the Bury and District  
Joint Hospital Orders 1903 and 1915.

Given under the Seal of Office of the Local Government Board  
this Seventeenth day of May One thousand nine hundred and  
fifteen.

(L.S.)

HERBERT SAMUEL President.

H. C. MONRO Secretary.

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HENLEY AND WALLINGFORD JOINT SMALL-POX  
HOSPITAL DISTRICT.

*Provisional Order for altering the Local Government Board's* *Henley and*  
*Provisional Orders Confirmation (No. 3) Act 1904.* *Wallingford*  
*Order.*

To the Henley and Wallingford Joint Small-pox Hospital  
Board ; —

To the Mayor Aldermen and Burgesses of the Borough of Henley-  
upon-Thames ; —

To the Mayor Aldermen and Burgesses of the Borough of  
Wallingford ; —

To the Rural District Council of each of the Rural Districts of  
Crowmarsh Goring Hambleden Henley and Wallingford ; —

And to all others whom it may concern.

WHEREAS by virtue of the Henley and Wallingford Joint Small-pox  
Hospital Order 1904 which was confirmed by the Local Government 4 Edw. 7.  
Board's Provisional Orders Confirmation (No. 3) Act 1904 (which Order c. lxiv.  
and Confirming Act are herein-after respectively referred to as "the  
Order of 1904" and "the Confirming Act of 1904") the Boroughs of  
Henley-upon-Thames and Wallingford and the Rural Districts of Crow-  
marsh Hambleden Henley and Wallingford constitute the United  
District called the Henley and Wallingford Joint Small-pox Hospital  
District (herein-after referred to as "the United District") of which  
the governing body is the Henley and Wallingford Joint Small-pox  
Hospital Board (herein-after referred to as "the Joint Board") ;

And whereas by virtue of the Order of 1904 the Joint Board con-  
sists of four ex-officio members and of seven elective members elected  
by the Councils of the above-named Boroughs and Rural Districts ;

[Ch. xciv.]      *Local Government Board's*      [5 & 6 GEO. 5.]  
*Provisional Orders Confirmation (No. 9) Act, 1915.*

A.D. 1915.      And whereas by Article XIX. of the Order of 1904 it is provided  
*Henley and*      that all the expenses incurred by the Joint Board shall be defrayed  
*Wallingford*      out of a common fund and that the Constituent Authorities shall  
*Order.*      contribute to the common fund in manner therein mentioned;

And whereas it is expedient that the Rural District of Goring should be included in the United District and that the Order of 1904 should be altered as herein-after provided:

38 & 39 Vict.      Now therefore We the Local Government Board in pursuance of  
c. 55.      the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order (herein-after referred to as "the commencement of this Order") the Confirming Act of 1904 so far as it relates to the Order of 1904 shall be altered so that the following provisions shall take effect that is to say:---

Extension      Art. I. The United District shall be extended so as to include the  
of United      Rural District of Goring and subject to the provisions of this Order  
District.      references in the Order of 1904 to the Constituent Districts shall be deemed to include the Rural District of Goring and references in the Order of 1904 to the Constituent Authorities shall be deemed to include the Rural District Council of Goring.

Ex-officio      Art. II. Article IV. of the Order of 1904 shall be altered so that  
and elective      the Joint Board shall consist of five ex-officio members and of eight  
members of      elective members and the ex-officio members shall be the persons  
Joint Board.      described in column 3 of the Schedule hereto and the number of  
elective members to be elected by each of the Constituent Authorities shall be that set opposite to the name of that Constituent Authority in column 4 of that Schedule.

Substitution      Art. III. The Order of 1904 as altered by this Order shall have  
of new      effect as if the Schedule to this Order were substituted for the Schedule  
Schedule.      referred to in the Order of 1904.

Election of      Art. IV. The provisions of Article XI. of the Order of 1904 shall  
elective mem-      apply to the first election by the Rural District Council of Goring of  
ber by new      the elective member to represent that Council on the Joint Board as  
Constituent      if the election related to the filling of a vacancy occurring at the  
Authority.      commencement of this Order.

Expenses of      Art. V. From and after the thirtieth day of September One  
Joint Board.      thousand nine hundred and fifteen subdivision (2) of Article XIX. of  
the Order of 1904 shall be altered so as to read as follows that is to  
say:—

“(2) To the common fund so far as the same is not provided by  
“ the aforesaid payments each Constituent Authority shall

[5 & 6 GEO. 5.]      *Local Government Board's*      [Ch. xciv.]  
*Provisional Orders Confirmation (No. 9) Act, 1915.*

“ contribute in the proportion which the assessable value  
“ of the Constituent District of that Constituent Authority  
“ bears to the aggregate assessable values of the Constituent  
“ Districts and for the purposes of this provision the  
“ assessable value of a Constituent District shall mean the  
“ aggregate of the rateable values of the several parishes  
“ comprised in the District according to the valuation lists  
“ in force on the Thirty-first day of March in each year  
“ prior to the issue of the precept reduced by an amount  
“ equal to the aggregate of one half of the rateable value  
“ of the agricultural land in the same parishes according  
“ to the said valuation lists.”

A.D. 1915.  
*Henley and  
Wallingford  
Order.*

Art. VI. The Local Government Board upon the application of **Adjustment.**  
any of the Constituent Authorities or of the Joint Board may by order  
adjust as between the Constituent Authorities or as between the  
Constituent Authorities and the Joint Board any expense or liability  
incurred by or attaching to the Joint Board before the commencement  
of this Order or any expense liability or accounts arising out of  
incidental to or connected with or affected by the inclusion of the  
Rural District of Goring in the United District or any expense liability  
or accounts in respect of which doubt or difference may arise after  
the commencement of this Order.

Art. VII. This Order may be cited as the Henley and Wallingford **Short titles.**  
Joint Small-pox Hospital Order 1915 and the Order of 1904 and this  
Order may be cited together as the Henley and Wallingford Joint  
Small-pox Hospital Orders 1904 and 1915.

The **SCHEDULE** above referred to.

| 1.                                     | 2.                                                                                           | 3.                  |                                                                                                                                                   | 4.                |
|----------------------------------------|----------------------------------------------------------------------------------------------|---------------------|---------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|
| Name of District.                      | Name of District Council.                                                                    | Ex-officio Members. |                                                                                                                                                   | Elective Members. |
|                                        |                                                                                              | Num-ber.            | Description.                                                                                                                                      | Number.           |
| The Borough of Henley - upon - Thames. | The Mayor Aldermen and Burgesses of the Borough of Henley-upon-Thames acting by the Council. | 1                   | The Mayor or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Deputy-Mayor. | 1                 |

[Ch. xciv.]      *Local Government Board's*      [5 & 6 GEO. 5.]  
*Provisional Orders Confirmation (No. 9) Act, 1915.*

A.D. 1915.

*Henley and  
Wallingford  
Order.*

| 1.                                 | 2.                                                                                    | 3.                  |                                                                                                                                                                                                                   | 4.                |
|------------------------------------|---------------------------------------------------------------------------------------|---------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|
| Name of District.                  | Name of District Council.                                                             | Ex-officio Members. |                                                                                                                                                                                                                   | Elective Members. |
|                                    |                                                                                       | Num-ber.            | Description.                                                                                                                                                                                                      | Number.           |
| The Borough of Wallingford.        | The Mayor Aldermen and Burgesses of the Borough of Wallingford acting by the Council. | —                   | —                                                                                                                                                                                                                 | 1                 |
| The Rural District of Crowmarsh.   | The Rural District Council of Crowmarsh.                                              | 1                   | The Chairman of the Rural District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Rural District Council. | 1                 |
| The Rural District of Goring.      | The Rural District Council of Goring.                                                 | 1                   | The Chairman of the Rural District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Rural District Council. | 1                 |
| The Rural District of Hambleden.   | The Rural District Council of Hambleden.                                              | —                   | —                                                                                                                                                                                                                 | 1                 |
| The Rural District of Henley.      | The Rural District Council of Henley.                                                 | 1                   | The Chairman of the Rural District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Rural District Council. | 2                 |
| The Rural District of Wallingford. | The Rural District Council of Wallingford.                                            | 1                   | The Chairman of the Rural District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Rural District Council. | 1                 |

Given under the Seal of Office of the Local Government Board  
this Sixth day of May One thousand nine hundred and  
fifteen.

(L.S.)

HERBERT SAMUEL President.  
H. C. MONRO Secretary.

MIDDLESEX DISTRICTS JOINT SMALL-POX  
HOSPITAL DISTRICT.

A.D. 1915.

*Provisional Order for altering certain Confirming Acts.*

*Middlesex  
Districts  
Small-pox  
Hospital  
Order.*

To the Middlesex Districts Joint Small-pox Hospital Board; —

To the County Council of Middlesex; —

To the Urban District Council of each of the Urban Districts of  
Acton Brentford Chiswick Edmonton Enfield Feltham Friern  
Barnet Greenford Hampton Wick Hanwell Harrow-on-the-Hill  
Southgate Staines Tottenham Wealdstone Wembley and Wood  
Green; —

And to all others whom it may concern.

WHEREAS by virtue of the Middlesex Districts Joint Small-pox  
Hospital Orders 1905 to 1911 which were respectively confirmed by  
the Local Government Board's Provisional Orders Confirmation (No. 14)  
Act 1905 the Local Government Board's Provisional Orders Confirmation  
(No. 6) Act 1908 the Local Government Board's Provisional Orders  
Confirmation (No. 3) Act 1910 and the Local Government Board's Pro-  
visional Orders Confirmation (No. 9) Act 1911 (each of which Orders  
is herein-after referred to as the Order of the year in which it was  
made and all which Orders and Confirming Acts are herein-after  
respectively referred to as "the Orders" and "the Confirming Acts")  
the Urban Districts of Acton Brentford Chiswick Edmonton Enfield  
Feltham Friern Barnet Greenford Hampton Wick Hanwell Harrow-on-  
the-Hill Southgate Staines Tottenham Wealdstone and Wood Green  
constitute the United District called the Middlesex Districts Joint  
Small-pox Hospital District (herein-after referred to as "the United  
District") of which the governing body is the Middlesex Districts  
Joint Small-pox Hospital Board (herein-after referred to as "the Joint  
Board");

5 Edw. 7.  
c. cix.  
8 Edw. 7.  
c. cxlvi.  
10 Edw. 7 &  
1 Geo. 5.  
c. lxxx.  
1 & 2 Geo 5.  
c. cxlvii.

And whereas it is expedient that the Urban District of Wembley  
in the County of Middlesex should be included in the United District  
and that the Orders should be altered as herein-after provided:

Now therefore We the Local Government Board in pursuance of  
the powers given to Us by Section 297 of the Public Health Act 1875  
and by any other Statutes in that behalf do hereby order that from  
and after the date of the Act of Parliament confirming this Order

38 & 39 Vict.  
c. 55.

[Ch. xciv.]      *Local Government Board's*      [5 & 6 GEO. 5.]  
*Provisional Orders Confirmation (No. 9) Act, 1915.*

A.D. 1915. (herein-after referred to as "the commencement of this Order") the  
*Middlesex*  
*Districts*  
*Small-pox*  
*Hospital*  
*Order.*  
 Extension  
 of United  
 District.  
 Confirming Acts so far as they relate to the Orders shall be altered as follows:—

Art. I. The United District shall be extended so as to include the Urban District of Wembley and subject to the provisions of this Order references in the Orders to the Constituent Districts shall be deemed to include the Urban District of Wembley and references in the Orders to the Constituent Authorities shall be deemed to include the Urban District Council of Wembley.

Number and  
 qualification  
 of elective  
 members.  
 Art. II. Article VI. of the Order of 1905 shall be repealed and the following provision shall be deemed as from the publication of the last report of the Census to have been substituted therefor:—

“ Art. VI.—(1) The number of members of the Joint Board  
 “ to be elected by each Constituent Authority shall be in  
 “ such proportion to the number of inhabitants in the Con-  
 “ stituent District as will enable the Constituent Authority to  
 “ elect where the total number of inhabitants is fifty thou-  
 “ sand or less one member and where the total number of  
 “ inhabitants is over fifty thousand one member for every fifty  
 “ thousand inhabitants and one member for any less number  
 “ of inhabitants which is over and above fifty thousand or  
 “ any multiple of fifty thousand and for the purposes of this  
 “ subdivision the number of inhabitants at any given time shall  
 “ be the number shown in the last preceding report on the  
 “ Census.”

“ (2) The member or members to be elected by each Con-  
 “ stituent Authority shall be elected by the Constituent Authority  
 “ from among the members of the Constituent Authority.”

Election of  
 elective mem-  
 ber by Dis-  
 trict Council.  
 Art. III. The provisions of Article XI. of the Order of 1905 shall apply to the first election by the Urban District Council of Wembley of the elective member to represent that Council on the Joint Board as if the election related to the filling of a vacancy occurring at the commencement of this Order.

Adjustment.  
 Art. IV. The Local Government Board upon the application of any of the Constituent Authorities or of the Joint Board may by order adjust as between the Constituent Authorities or as between the Constituent Authorities and the Joint Board any expense or liability incurred by or attaching to the Joint Board before the commencement of this Order or any expense liability or accounts arising out of incidental to or connected with or affected by the inclusion of the Urban District of Wembley in the United District or any expense liability or accounts in respect of which doubt or difference may arise after the commencement of this Order.

A.D. 1915.

*Middlesex  
Districts  
Small-pox  
Hospital  
Order.*

Short titles.

Art. V. This Order may be cited as the Middlesex Districts Joint Small-pox Hospital Order 1915 and the Orders and this Order may be cited together as the Middlesex Districts Joint Small-pox Hospital Orders 1905 to 1915.

Given under the Seal of Office of the Local Government Board  
this Thirtieth day of April One thousand nine hundred and  
fifteen.

(L.S.)

HERBERT SAMUEL President.

WALTER T. JERRED Assistant Secretary.

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URBAN DISTRICTS OF DAWLEY MARKET DRAYTON  
NEWPORT OAKENGATES AND WELLINGTON (SALOP)  
AND  
RURAL DISTRICTS OF DRAYTON NEWPORT SHIFNAL  
AND WELLINGTON (SALOP).

*Provisional Order for Union of Districts under Section 286  
of the Public Health Act 1875.*

*North-east  
Salop United  
Districts  
(Medical  
Officer of  
Health)  
Order.*

To the Urban District Councils of Dawley Market Drayton Newport  
Oakengates and Wellington (Salop); —

To the Rural District Councils of Drayton Newport Shifnal and  
Wellington (Salop); —

And to all others whom it may concern.

WHEREAS the district councils named in column 2 of Parts I. and II. of the Schedule to this Order are the local authorities within the meaning of the Public Health Act 1875 for the districts named in column 1 of that Schedule and those districts are situated wholly within the County of Salop and a Medical Officer of Health has been appointed for each of the Districts named in Part II. of the said Schedule;

38 & 39 Vict.  
c. 55.

And whereas upon consideration of a representation made to the Local Government Board it appeared to the Board that it would be for the advantage of the said districts that those districts should be united for the purpose of appointing a Medical Officer of Health and the Board accordingly gave to each of the said district councils in pursuance of Section 286 of the said Act notice that the Board proposed to issue an Order uniting the districts named in Part I. of the Schedule and the Urban District of Market Drayton for the purpose of appointing a Medical Officer of Health and to provide in the Order that on the occurrence of a vacancy in the office of Medical Officer

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of Health for any of the other districts named in Part II. of the Schedule that district should for the purposes of the Order be united with the districts named in Part I. of the Schedule;

And whereas under the said section notice of objection to the proposal has been received within the time fixed by that section from the Urban District Council of Market Drayton and the Rural District Council of Shifnal being two of the district councils above referred to and consequently the said districts may be united for the purpose of appointing a Medical Officer of Health by a Provisional Order but not otherwise:

Now therefore in pursuance of the powers given to Us by Section 286 of the said Act and by any other Statutes in that behalf We the Local Government Board do hereby order as follows that is to say:—

Definitions.

Art. I. In this Order—

- (1) The expression “the appointed day” means the date of the Act of Parliament confirming this Order;
- (2) The expression “the Schedule” means the Schedule to this Order;
- (3) The expression “the Act” means the Public Health Act 1875;
- (4) The expression “Constituent District” means a district named in column 1 of Part I. of the Schedule and the expression “Constituent Districts” means all the districts so named;
- (5) The expression “Constituent Authority” means a district council named in column 2 of Part I. of the Schedule and the expression “Constituent Authorities” means all the district councils so named.

Commence-  
ment of  
Order.

Art. II. This Order shall come into operation from and after the appointed day.

Union of  
Districts.

Art. III. The Constituent Districts shall be united for the purpose of the appointment of a Medical Officer of Health and a Joint Committee of representatives of the Constituent Authorities\* shall be constituted in pursuance and for the purposes of this Order.

Constitution  
of Joint  
Committee.

Art. IV. The Joint Committee shall consist of thirteen members elected by the Constituent Authorities.

Number and  
qualification  
of elective  
members.

Art. V. The number of members of the Joint Committee to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 3 of the Schedule and the said members shall be chosen by each Constituent Authority from among their own members.

Date of first  
election.

Art. VI. The first election of members of the Joint Committee shall take place at a meeting of each Constituent Authority to be held

[5 & 6 GEO. 5.]      *Local Government Board's*      [Ch. xciv.]  
*Provisional Orders Confirmation (No. 9) Act, 1915.*

within six weeks from the appointed day or within such further time as the Local Government Board may allow and seven days' previous notice in writing of the said meeting shall be given or sent to each member of the Constituent Authority by the clerk to that Constituent Authority :

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Provided that if any of the Constituent Authorities fail to elect members of the Joint Committee within the time aforesaid the members of the Joint Committee actually elected shall act as the Joint Committee.

Art. VII. The clerk to each Constituent Authority shall notify to the Local Government Board in writing within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Committee.

Notification  
to Local  
Government  
Board of  
members first  
elected.

Art. VIII. A member of the Joint Committee shall continue in office until the expiration of the period for which he was elected a member of the Joint Committee or until he dies or resigns or ceases to be a member of the Constituent Authority as a member of which he was qualified to be elected or otherwise becomes disqualified whichever shall first happen :

Tenure of  
office of  
members.

Provided that a member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall be re-eligible as a member of the Joint Committee if at the time of re-election he is qualified to be so re-elected.

Art. IX. Any vacancy occurring amongst the members of the Joint Committee by death resignation disqualification or otherwise shall be filled up by the Constituent Authority in whose representation the vacancy occurs at a meeting to be held within six weeks of the occurrence of the vacancy or within such further period as the Local Government Board determine and seven days' previous notice in writing of the said meeting shall be given or sent to each member of the Constituent Authority by the clerk to that Authority and the clerk shall forthwith notify in writing to the clerk to the Joint Committee the names address and occupation of the person elected to fill the said vacancy A vacancy in the Joint Committee shall not invalidate their proceedings.

Supply of  
vacancies.

Art. X.—(1) The time and place of holding the first meeting of the Joint Committee shall be fixed by the Local Government Board and the subsequent ordinary meetings of the Joint Committee shall be held at such times and places as the Joint Committee may appoint and at all meetings of the Joint Committee four members shall constitute a quorum.

Meetings.

[Ch. xciv.]      *Local Government Board's*      [5 & 6 GEO. 5.]  
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(2) An extraordinary meeting shall be summoned by the clerk to the Joint Committee when a requisition for that purpose is addressed to him by the chairman or any two members of the Joint Committee.

(3) The requisition shall be in writing and no business other than that specified in the requisition shall be transacted at the extraordinary meeting.

(4) Notices of all meetings of the Joint Committee shall be delivered or sent by post so as to reach the last known place of abode or business in England of each member of the Joint Committee three clear days before the day of meeting or at such earlier time as the Joint Committee direct.

(5) Every question at any meeting shall be determined by a majority of the votes of the members present and voting on the question and in the case of an equality of votes on any question the presiding chairman may give a casting vote.

Appointment  
of chairman  
and clerk.

Art. XI. The Joint Committee shall at their first meeting or at an adjournment thereof appoint a chairman and a clerk.

Remunera-  
tion of clerk.

The Joint Committee may pay the clerk such reasonable remuneration as they deem expedient and he shall be removable by the Joint Committee at their pleasure.

Vacation of  
office by  
chairman or  
clerk.

Art. XII. Any vacancy in the office of chairman or clerk shall be filled up within six weeks at a meeting to be called by the clerk or chairman of which at least fourteen days' notice shall be given to each member or at a meeting held by adjournment from the meeting to be called as aforesaid.

If the office of chairman be vacant or if the chairman be not present at any meeting of the Joint Committee the members of the Joint Committee present may choose one of their number to preside.

Minutes of  
proceedings.

Art. XIII. The clerk to the Joint Committee shall punctually keep minutes of the proceedings at every meeting of the Joint Committee and shall enter the said minutes in a book and shall submit the same so entered to the presiding chairman at the succeeding meeting for signature and shall obey all lawful directions of the Joint Committee with reference to his office.

Duties &c.  
of Medical  
Officer of  
Health.

Art. XIV. The provisions contained in the Sanitary Officers (Outside London) Order 1910 and in any order issued by the Local Government Board in substitution for or in amendment or extension of that order shall except so far as those provisions may be inconsistent with this Order apply to the appointment qualification duties remuneration and tenure of office of the Medical Officer of Health to be appointed in pursuance of this Order.

Notice  
previous to  
resignation.

Art. XV. No person shall be appointed Medical Officer of Health who does not agree to give three months' notice previous to resigning

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the office or to forfeit such sum as may be agreed upon as liquidated damages.

Art. XVI. The salary of the Medical Officer of Health and his expenses as examined and allowed by the Joint Committee shall be paid by the Constituent Authorities.

*Salary of  
Medical  
Officer of  
Health.  
Accounts.*

Art. XVII.—(1) The clerk to the Joint Committee shall at the end of each year make out a statement showing the remuneration due to him in respect of that year as well as the other expenses of the Joint Committee incurred during the same period and that statement shall be submitted to the Joint Committee.

(2) As soon as conveniently may be after the examination of the statement by the Joint Committee the clerk shall apply to the several Constituent Authorities for payment of the amount due from each Constituent Authority and payment shall be made by them accordingly.

(3) A copy of the statement of the accounts of the Joint Committee shall be sent by the Joint Committee to each Constituent Authority.

Art. XVIII. Until We by order otherwise prescribe the contribution of each Constituent Authority to any payment in respect of the salary and expenses of the Medical Officer of Health and the remuneration of the clerk to the Joint Committee and the expenses referred to in Article XVII. of this Order shall be the mean of the two amounts ascertained as follows that is to say (1) the amount ascertained from the proportion which the number of inhabitants in the Constituent District bears to the aggregate number of inhabitants in the Constituent Districts and (2) the amount ascertained from the proportion which the assessable value of the Constituent District bears to the aggregate assessable values of the Constituent Districts and for the purposes of this Article the number of inhabitants of a Constituent District shall be ascertained from the last published Census at the time a payment becomes due and the assessable value of a Constituent District shall mean the aggregate of the rateable values of the several parishes comprised in the District according to the valuation lists in force on the Thirty-first day of March next preceding the date at which a payment becomes due reduced by an amount equal to the aggregate of one-half of the rateable value of the agricultural land in the same parishes according to the said valuation lists.

*Apportion-  
ment of  
charge of  
salary &c.*

Art. XIX.—(1) On the occurrence of a vacancy in the office of Medical Officer of Health for any of the districts named in column 1 of Part II. of the Schedule that district shall be united with the Constituent Districts and shall form one of the Constituent Districts for the purposes of this Order.

*Power of Local  
Government  
Board to adapt  
provisions of  
Order on alter-  
ations of Con-  
stituent Dis-  
tricts or addi-  
tion of another  
District.*

(2) In such case and also if at any time any new district is formed including the whole or any part of any of the districts named in column 1 of the Schedule to this Order or the boundaries of any of

[Ch. xciv.]      *Local Government Board's*      [5 & 6 GEO. 5.]  
*Provisional Orders Confirmation (No. 9) Act, 1915.*

A.D. 1915.      those districts are otherwise altered or any of those districts are created or included in a municipal borough or if it is desired for the purposes of this Order to unite to the districts any other Rural or Urban District situate wholly in the County of Salop or if it is desired that any of the districts should cease to be included in the Union of Districts made by this Order with a view to inclusion in some other union of districts for the like purpose then and in every such case the Local Government Board may by order to be published as they direct make such provision as to them seems fit for adapting the provisions of this Order to the alteration so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Order.

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Settlement of  
differences.

Art. XX. — (1) If any difficulty arises with respect to any appointment of a Medical Officer of Health by the Joint Committee the Local Government Board may by order make or validate any appointment or do anything which appears to them to be necessary or expedient for facilitating the appointment of the Medical Officer of Health and the Local Government Board may also make any such order as appears to them to be necessary for bringing this Order into full operation.

(2) If any question or difference arises as to the interpretation of this Order or as to the powers duties and proceedings of the Joint Committee or of a Constituent Authority for the purposes of this Order or as to any other act matter or thing under this Order the said question or difference may on the application of the Joint Committee or of a Constituent Authority be referred to the decision of the Local Government Board and their decision shall be final and conclusive.

(3) Every order made by the Local Government Board in pursuance of this Article may modify any provision of this Order so far as appears to the Local Government Board to be necessary and shall have effect as if the order formed part of this Order.

Short title.

Art. XXI. This Order may be cited as the North-east Salop United Districts (Medical Officer of Health) Order 1915.

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The SCHEDULE above referred to.

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| 1.                                       | 2.                                               | 3.                |
|------------------------------------------|--------------------------------------------------|-------------------|
| Name of District.                        | Name of District Council.                        | Elective Members. |
|                                          |                                                  | Number.           |
| PART I.                                  |                                                  |                   |
| The Rural District of Newport -          | The Rural District Council of Newport.           | 2                 |
| The Rural District of Shifnal -          | The Rural District Council of Shifnal -          | 3                 |
| The Urban District of Dawley -           | The Urban District Council of Dawley             | 2                 |
| The Urban District of Newport -          | The Urban District Council of Newport.           | 1                 |
| The Urban District of Oakengates         | The Urban District Council of Oaken-<br>gates.   | 3                 |
| The Urban District of Wellington         | The Urban District Council of Welling-<br>ton.   | 2                 |
| PART II.                                 |                                                  |                   |
| The Rural District of Drayton -          | The Rural District Council of Drayton            |                   |
| The Rural District of Wellington         | The Rural District Council of Welling-<br>ton.   |                   |
| The Urban District of Market<br>Drayton. | The Urban District Council of Market<br>Drayton. |                   |

Given under the Seal of Office of the Local Government Board  
this Seventeenth day of May One thousand nine hundred and  
fifteen.

(L.S.)

HERBERT SAMUEL President.  
H. C. MONRO Secretary.

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